

ESA
Director General's Office

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Corporate Policy on Health and Safety

1. INTRODUCTION

Pursuant to Article XII.1.b of the Convention, the Director General (DG) is the chief executive officer of the Agency, its legal representative, and has authority over the sites of the Agency. In that capacity, the DG has overall responsibility and is accountable for all health and safety risks (i) arising on ESA sites, and/or (ii) arising in the context of the Agency's activities.

The DG has thus responsibility for all persons¹, irrespective of their status, who participate in the Agency's activities or are physically present on its sites. What these responsibilities are, and how they should be discharged, depends upon the context, and includes risks to Staff members when on mission and teleworking.

Employment is an opportunity for improving the physical and psychological health of manpower resources². As well as benefiting individuals, the Agency will gain through health-related improvement in work performance and reduction in sickness absence.

It is therefore in the interest of the Agency that risks to health and safety are identified and subject to constant reduction. Decisions that relate to the Agency's activities will be motivated by understanding the associated potential for risks and the measures needed to reduce them.

The process of risk assessment provides a mechanism to identify, control and mitigate risks.

This policy sets the principles governing the Agency's risk-based approach and ensures that account is taken of health and safety in the planning and conduct of the

¹ For the purposes of the present policy, "persons" covers anyone present on an ESA site (including visitors).

² For the purposes of the present policy, "manpower resources" covers staff members and contractor personnel.

activities of the Agency. The policy shall ensure that, at corporate level, an appropriate and consistent approach is taken to identify and control risks.

2. POLICY

It is the Agency's policy to:

- Keep as low as reasonably practicable all health and safety risks arising in the context of its activities.
- Provide adequate resources to identify and manage risks and to improve continuously standards of health and safety.
- Establish a working environment in which its manpower resources and any other individual on site performing temporary assignments (i.e., visiting scientists, interns etc...) recognise and assume appropriate responsibilities for promoting health and safety at work.
- Promote the physical and psychological health of its manpower resources.

Maintain a monitoring regime to:

- control health and safety risks.
- monitor the status of health and safety management.
- identify the root causes of incidents and instances of occupational illness.
- keep track of changes to national health and safety legislation where ESA sites are located.
- anticipate changes to the control of health and safety risks whether internal or external to the Agency.

3. SCOPE OF APPLICATION

This policy applies to the activities of the Agency and to any person present on ESA sites (including manpower resources and visitors). It also applies to Staff members when on mission and during teleworking³.

4. PRINCIPLES

4.1 Risk Assessment⁴

Any decision taken in the context of the activities of the Agency and having a potential impact on health and safety needs to be based on an assessment of the related potential risks and of the measures that can be implemented to reduce such risks. Where risks cannot be eliminated, they will be subject to appropriate evaluation, reduction, and control. Whatever is "appropriate" will depend upon the magnitude of

³ cf. Corporate Policy on Teleworking, ESA/ADMIN/IPOL-WORK (2016)1, rev. 2.

⁴ The assessment of health and safety risks needs to be reconciled with the ESA risk management policy. Ultimately, terminology, risk acceptance criteria and classification will all be commensurable.

the risk and the ability to reduce it given the specific circumstances, including operational necessity.

The process of risk assessment provides a means for achieving appropriate reduction and control by:

- understanding the context of the activity and any relevant standards.
- identifying the ways in which the harm could occur.
- assessing the likelihood of occurrence and severity of risks.
- considering whether the risk can be reduced.
- devising measures for reducing the risk and assessing the effect of the change.
- implementing measures and monitoring their effectiveness, and
- periodic review and if circumstances change (i.e., new technology, incident, scale up/down etc).

Where appropriate, and when such assessment cannot reasonably be undertaken by the Agency itself, the Agency may rely on risk assessments undertaken by public authorities of the Member States or by other competent entities.

4.2 Reducing health and safety risks across the whole life cycle of an activity/asset

For health and safety risks created by the Agency's activities, the most effective way to reduce risk across the whole life cycle of an activity or asset is during its planning and design phases. Where this is not possible, then risk should be reduced according to a series of strategies in order of their effectiveness otherwise known as the safety precedence sequence.

As Figure 1 below illustrates, risk reduction needs to be applied through the lifecycle of the activity/asset and should be reviewed when the activity/asset changes or if new information becomes available or due to changing circumstances.

The lifecycle starts with planning and then design, followed by purchasing, fabrication, construction, operation, maintenance, and disposal.

Decisions on health and safety in the operational phase of an Agency programme or facility shall also consider maintenance and later disposal.

Residual risks shall also be considered and managed when accepting or transferring them.

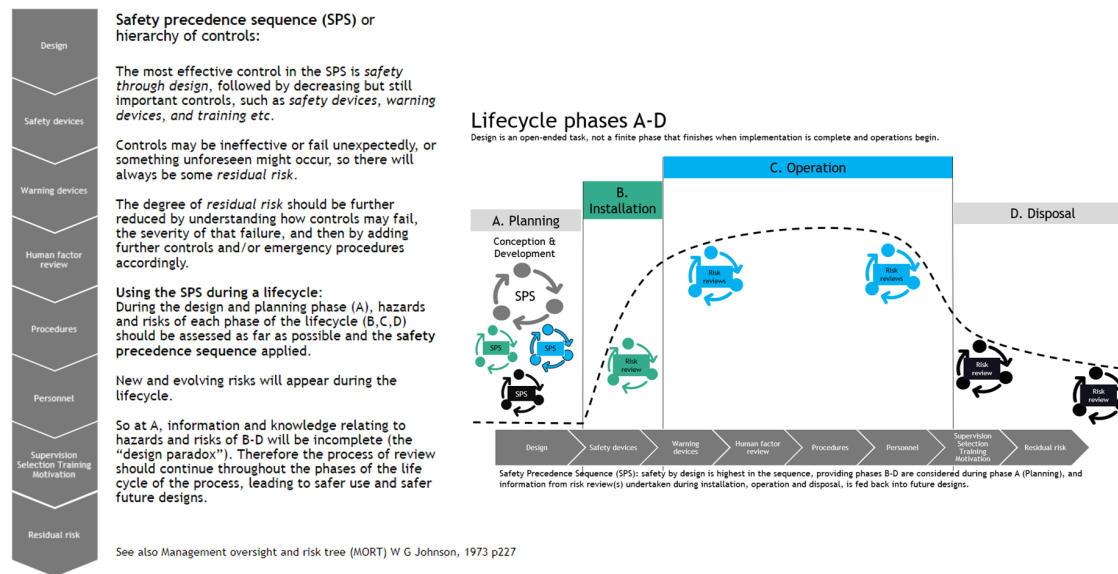


Figure 1. The Safety Precedence Sequence and the System Lifecycle

4.3 Promoting health and safety and providing appropriate means

It is the duty of the manpower resources to make decisions and act in a way that promotes health and safety in the context of ESA's activities by:

- reducing the likelihood of harm occurring (to oneself and to others) and
- advocating for safe and healthy activities and workplaces.

There are three main ways in which this duty is discharged:

- i. in the planning and conduct of work activities (for example with respect to the site, the operation's specific location, on mission and during teleworking for staff members)
- ii. in the provision and maintenance of premises, plant, and equipment (sites, offices, laboratories, technical facilities, etc.)
- iii. in the provision of services from one department to another.

To facilitate manpower resources duties, adequate resources will be provided to ensure that promotion of health and safety is given priority.

The health and safety competence of the manpower resources is to be continuously developed. This will be specific to their function and within the framework of the Agency's generic competency model.

4.4 Conformity with National Legislations on Health and Safety

On each site of the Agency, the Head of Establishment/Centre/Office shall draw up special instructions on health and safety which shall conform with the health and safety

standards of the legislation of the State where the site is located. The state of conformance with the health and safety standards of local legislation shall be monitored and maintained on each site of the Agency.

However, and by way of exception to the above, the Director General may impose health and safety standards common to all sites of the Agency, if necessary.

4.5 Collaboration with National Authorities

In keeping with the Convention, the Agency will cooperate with the competent authorities of Member States in matters of health and safety.

4.6 Keeping pace with Change

Planned and unplanned changes can introduce new and unforeseen risks or increase existing risks to health and safety.

This fact emphasises the importance of internal arrangements for active and reactive monitoring to foresee and detect changes allowing timely and appropriate review of the Agency's activities.

This also extends to the investigation of unplanned events (i.e., incidents, accidents and near-misses...) as these provide an important trigger to identifying inadequately controlled risks.

As well as vigilance to internal change, the Agency shall be alerted to changes in standards and approaches to health and safety in industry and society.

External relationships and benchmarking are particularly important for proactively achieving this.

Establishing and maintaining relationships with external associations is an important investment in the knowledge resources for the health and safety mission of the Agency.

National enforcement agencies, such as labour inspectorates and fire departments, fall into this category.

Monitoring and periodic reviews shall also provide an impetus to the continuous improvement of health and safety management in the Agency.

4.7 Involvement of the Staff representatives in health and safety matters

Staff members, through their local SAC representatives for Health and Safety matters, have the right to:

- take part in discussions on all questions relating to health and safety in the workplace
- make proposals to management about health and safety in the workplace
- be consulted in advance and in good time about any measures which may have a substantial effect on health and safety at work
- be informed on the significant findings of relevant incidents/accidents investigations

These rights are implemented through the participation of the Local SAC Representatives in Local Health and Safety Committees, which include risk assessments and health and safety monitoring activities.

4.8 Accountability

Leadership, commitment, and active support from ESA management are critical for the success of the ESA Health and safety system.

Management accountability and commitment are key to establish a working environment in which the manpower resources recognise and assume responsibility for promoting health and safety at work.

This includes measures that allow management to appraise and support Staff members in their efforts to deliver safe and healthy work, and measures such as those provided by the operation of health and safety committees at sites.

The main approach is of positive, proactive, performance-based measurement.

4.9 Breach of health and safety rules

Breaches of safety rules and/or wilful misuse of safety equipment by Staff Members may give rise to disciplinary action as detailed in the Agency's Staff Regulations Rules and Instructions.

The DG shall take appropriate steps towards contractors to ensure that contractor personnel comply with this Policy. In the event of a breach of safety rules and/or wilful misuse of safety equipment by contractor personnel, the Director General shall take appropriate measures.

Similarly, in the event of a breach of safety rules and/or wilful misuse of safety equipment by other non-staff members, the Director General shall take appropriate measures.

4.10 Reporting of accidents and incidents

Each member of the manpower resources is responsible for reporting incidents, accidents and near misses as soon as possible.

Reporting should be done locally via line managers or technical officers to a Health and Safety unit or officer or directly to a Health and Safety unit or officer (Establishment/Centre/Offices).

4.11 Purpose in the investigations of accidents and incidents

Incidents and accidents are all occurrences arising out of, or in the course of, work that could or do result in injury and ill health.

An “accident” does result in injury or ill health.

Specifically:

- Accident Injury is an adverse effect on someone’s physical condition.
- Accident Ill Health is adverse effect on someone's mental or cognitive condition.
- Incident Near Miss (unsafe condition) is an incident where no injury and ill health occurs but has the potential to do so – including technical incidents that could have caused injury or safety issues.

If a person is impacted, their line manager or technical officer must also be immediately informed of the incident/event that happened.

The purpose of an investigation is to find out the relevant facts that led to the incident, accident or near miss, to learn lessons and implement relevant changes to ensure it will not recur.

The investigation can be local or Corporate according to the criticality of the event.

The local investigation shall be conducted according to the procedures adopted in each Establishment unless the Health and Safety unit or Officer responsible for the site or establishment considers that they would not be appropriate. In such case the Corporate investigations shall by default be conducted pursuant to the ESA Policy for Internal Investigations (ESA/ADMIN/IPOL-RISK(2020)1).

An investigation should identify points for improving safety within an Establishment/Centre/Office within a project or programme, and across the Agency.

The aim of the investigation is to improve ESA’s overall safety culture. Investigations will be conducted for this reason and not to allocate blame or to punish individuals.

If during a local investigation it becomes clear that the conduct of a member of the manpower resources may warrant sanctions, this should immediately be brought to the attention of the Head of Establishment/Centre/Office (or Programme or Support Director for events off-site) and steps followed to take the appropriate measures regarding the individual and protect the rights of individuals in accordance with the Agency’s Staff Regulations, Rules and Instructions or other applicable legislation in the case of contractor personnel.

4.12 Health and safety in ESA's contracts

In the context of its procurement activities, and in keeping with its role in promoting high standards within the European space industries, the Agency shall require its contractor personnel to deliver the highest standards of health and safety throughout the duration of their contract.

Where several activities are taking place together, the Agency must ensure that these activities are co-ordinated.

4.13 Fitting the work to the person, and being alert to individual differences in vulnerability

The Agency shall be vigilant to the possible effects of individual differences to assumptions that are made in the design of work and workplaces, including emergency escape arrangements and guidelines for a healthy work environment.

The design of workplaces, workstations, and work activities shall benefit from an approach that “fit the work to the person” rather than assuming the person will adapt.

This principle of tailoring work to the individual shall also extend to the use of, and exposure to, chemicals, energies and environments that may pose a risk to health and safety.

The Agency will consider the effects of individual variability (i.e., age, gender, temporary or permanent changes to ability etc) on any exposure limit stated in authoritative published standards.

5. ROLES AND RESPONSIBILITIES

The detailed roles and responsibilities for the implementation of this policy can be found in Annex 1 and Annex 2 to this document.

It is the responsibility of all people on the Agency's sites, irrespective of their status, to:

- a) act in a way which does not endanger their own safety and health or that of others.
- b) use facilities, equipment and substances as instructed.
- c) properly use the provided safety measures (e.g., personal protective equipment).
- d) refrain from disconnecting, changing or removing arbitrarily safety devices fitted, e.g., to machinery, apparatus, tools, plant and buildings, and use such safety devices correctly.

- e) immediately report any situation in the workplace where they have reasonable grounds to suspect a serious and immediate danger to safety and health or any shortcomings in the protection arrangements.
- f) report unplanned events such as accidents, incidents and near misses, according to the local arrangements in place at the operations location.
- g) cooperate with management initiatives to protect the safety and health of themselves and others.
- h) Participate to H&S training as required by host nation regulation.
- i) Any other measure as required by local arrangements of the place of operation location.

6. EVALUATION AND MONITORING OF THE POLICY

The effectiveness of this policy and its implementation will be assessed by the Department in charge of facilities management, or at any time upon request of the Director General.

The Programme Directors, the Heads of Establishment, the Heads of Departments in charge of facilities management, personnel matters, and procurement will provide a detailed report at least once a year to the Director General of the work carried out to implement this policy.

The Head of the Department in charge of facilities management will provide the Director General with reports summarising:

- a) the results of monitoring health and safety collated at Agency level
- b) any future changes, both internal and external to the Agency, that are relevant to the control of health and safety risks.

Based on these data, the Director General will set new targets for the year ahead.

7. VALIDITY

This Instruction is effective for a period of four years as from the date of its entry into force.

8. SUPERSEDED INSTRUCTION

This Instruction supersedes ESA/ADMIN/IPOL (2018) 1 which is revoked.

9. ENTRY INTO FORCE

This Instruction enters into force on the day of its publication.

10. PUBLICITY

The present Instruction is to be made available to all contractors and their personnel.

The Director General

Annex 1

DETAILED ROLES AND RESPONSIBILITIES IN IMPLEMENTING THE POLICY ON HEALTH AND SAFETY

1 Programme Directorates, Heads of Programmes and Heads of Projects

1.1 Programme Directors

Programme Directors are responsible for managing the health and safety risks from the activities of their Directorates, whether on site or off site, and providing annual reports to the Director General.

1.2 Heads of Programmes or Projects

Heads of programmes or projects are responsible for managing the health and safety risks in their area of responsibility. They are responsible for:

- a) including health and safety risks within the scope of risk management undertaken for space projects and programmes.
- b) ensuring that suitable and sufficient risk assessments are made for the project and programme activities.
- c) ensuring that health and safety risks arising from project or programme activities are entered as needed into the applicable risk register(s).
- d) coordinating risk management activities with the Departments in charge of facilities management and personnel matters.
- e) informing the appropriate Programme Director (and, if the risks are to the health and safety of people at an ESA site, the Head of that establishment or centre) about the following aspects of the project or programme:
 - i) the control of health and safety risks arising from activities.
 - ii) the status of health and safety management within the project or programme.
 - iii) the conformity of activities and equipment with the national health and safety legislation of host nations
 - iv) anticipated changes, whether internal or external to the Agency, that are relevant to the control of health and safety risks.
- f) To report immediately, according to the applicable local arrangements, any incident or potential instance of occupational illness of any person who is a

participant in the activity of the project or programme, irrespective of their status.

2 Heads of Establishments, Centres and Representation Offices (HECOs)

In addition to the responsibilities set out in the “*Corporate Policy on the Role and Responsibilities of the Heads of Agency’s Establishments, Centres and Representation Offices*”, HECOs are responsible for:

- a) drawing up special instructions on health and safety applicable to the relevant Establishment, Centre or Representation Office.
- b) ensuring that there are suitable and sufficient health and safety risk assessments relating to activities and conditions at their sites.
- c) suspending any activity that creates inadequately managed risk to the health and safety of people on site.
- d) establishing a suitable site inspection regime with the local authorities responsible for enforcing national health and safety legislation in the host country.
- e) ensuring conformity with the health and safety standards of the legislation of the host country.

The HCEO chairs the Health and Safety committee held at regular intervals to discuss health and safety matters, within the reference framework provided by the Head of the Department in charge of facilities management.

This committee provides the opportunity for all significant health and safety issues to be tabled and for the HECOs to ensure compliance with the spirit and intent of ESA’s health and safety policy.

3. Corporate and Support Directors

Corporate and Support Directors are responsible for implementing this policy and integrating its principles, in their respective area of responsibility.

They shall report annually to the Director General, describing their future targets (linked to the implementation of this policy) and their performance in the previous period.

4. The Head of the Department in charge of facilities management

The Head of the Department in charge of facilities management:

- 4.1 Ensures the coherence of health and safety management within the Agency.
- 4.2 Liaises with the Head of the Department in charge of personnel matters to achieve this in general, and with specific regard for the Agency's management of occupational health and psychosocial risks.
- 4.3 Fulfils the following specific duties in consultation with the relevant Directors.
 - a) establishes and maintains the general framework of reference for a health and safety committee at each site.
 - b) provides site-based independent monitoring of and competent technical advice about health and safety.
 - c) reviews at four yearly intervals, the ESA policy on health and safety.
 - d) provides a monitoring programme that collects objective and agency-wide data about:
 - i) the control of health and safety risks.
 - ii) the status of health and safety management, including the implementation of the present policy on health and safety.
 - iii) statistics that summarise the occurrence and causes of incidents and occupational illness.
 - iv) the state of conformity with the national health and safety legislation of host nations.
 - v) anticipated changes, whether internal to the Agency or external, that are relevant to the control of health and safety risks at more than one site.
 - e) ensures that health and safety risks arising from the activities of the Department in charge of facilities management, or risks that it controls on behalf of the Head of Establishment or Centre (such as fire risk and legionella), are entered as needed into the applicable risk register(s).
 - f) advises on team selection, and scope, for high level incident investigations.
 - g) liaises with the Head of Department in charge of personnel matters about occupational health and psychosocial risks.
 - h) reports annually to the Director General:
 - i) the health and safety objective, targets, and programmes.
 - ii) the activities performed by the Department to fulfil the responsibilities listed above.

- iii) future targets linked to the present policy, and their performance against targets set in the previous period.
- iv) Other data as required

4.4 The consultation with Directors is achieved by attending a quarterly meeting with the Heads of Establishment Committee and, annually, one meeting convened for this purpose by the Director General.

5. The Heads of the Divisions and Services in charge of facilities management

The Heads of the Division and Services in charge of facilities management have the two following major functions within this policy:

5.1 To integrate health and safety into their responsibilities for providing infrastructure and facility management services. They are responsible for:

- a) ensuring appropriate risk assessment, control and monitoring of all activities related to the provision of infrastructure and facility management services.
- b) co-ordinating this effort on occupational health, with the local Representative of the Department in charge of personnel matters.
- c) providing up-to-date information about the control of those infrastructure and FM service risks that have been defined in consultation with the Head of Establishment.

5.2 To ensure the coherence of health and safety management at their site. Apart from ESTEC, where the ESTEC Health, Safety and Environment (HSE) Unit fulfils the duties listed below, they are responsible for:

- a) advising Heads of Departments and Divisions and the manpower resources about their roles and responsibilities for health and safety
- b) advising Heads of Departments and Divisions on health and safety matters as requested by their manpower resources
- c) assuring the Head of Establishment about:
 - i) the status of controls for health and safety risks arising from activities and conditions on site.
 - ii) the status of health and safety management.
 - iii) the state of conformity with the host nation's health and safety legislation.
 - iv) preparedness for anticipated changes, whether internal to the Agency or external, that are relevant to the control of health and safety risks at the site.

- d) assuring that all safety incidents and instances of occupational illness are competently and objectively investigated.
- e) ensuring that the manpower resources and visitors to site receive appropriate information about health and safety arrangements at the site (including emergency procedures).
- f) providing administrative support to health and safety committees as directed by the Head of Establishment.
- g) referring, without delay, to the Department in charge of human resources any incidents that may give rise to disciplinary proceedings (as per ESA/ADMIN/IPOL-RISK(2020)1).
- h) referring, without delay, to the Department in charge of legal affairs any other questions of a legal nature and possible conflicts with the host nation's authorities responsible for enforcing health and safety legislation and informing the Head of Establishment and the Head of the Department in charge of facilities management.

6. The Head of the Department in charge of personnel matters

The Head of the Department in charge of personnel matters shall:

- 6.1 ensure the suitability of occupational health management and the systematic promotion of occupational health and psychosocial risks within the Agency.
- 6.2 Liaise closely and co-ordinate activities with the Head of the Department in charge of facilities management.
- 6.3 has the duty to:
 - a) ensure the responsibilities set out in this annex are referenced in the Vacancy Notices.
 - b) develop selection, training, and appraisal criteria so that people employed by ESA can:
 - i) meet their general and host nation health and safety obligations.
 - ii) the health and safety obligations specific to responsibilities set out in the present policy.
 - c) As a priority ensure appropriate training is provided to the manpower resources to meet their health and safety obligations

- d) provide advice to Heads of Departments and Divisions and the manpower resources on occupational health matters, including the interpretation of ESA Staff Regulations, Rules and Instructions.
- e) provide to each Director statistics that describe psychosocial risks and their control.
- f) report annually to the Director General on:
 - i) future changes, whether internal or external to the Agency, that are relevant to the control of occupational health and psychosocial risks at more than one site.
 - ii) the activity of the Department with respect to fulfilling these responsibilities.
 - iii) future targets linked to the policy, and their performance against targets set in the previous period.

7. Local Representative of the Department in charge of personnel matters

With the support of the local Medical Officer, or the ESA Medical Advisor (as appropriate), the local Representative of the Department in charge of personnel matters, or the Social Affairs Service for ESA Headquarters, is responsible for:

- a) planning medical examinations of ESA employed personnel, including monitoring for occupational ill-health.
- b) monitoring the sickness absence of ESA employed personnel to identify potential causes in work and the working environment.
- c) planning and perform risk assessment on occupational health, ergonomics, and psychosocial risk.
- d) share the occupational risk assessment with the Head of Establishment and Centre, to the health and safety committee, and provide statistics that describe psychosocial risks and their control.
- e) planning and delivering health promotion campaigns on site as decided by internal priorities and where possible linked to external campaigns.
- f) liaising with others to maintain awareness of developments (including legislative developments), conformance to national applicable legislation and best practice in occupational health.
- g) reporting annually to the Head of Establishment the activity of the local Representative or service of the Department in charge of personnel matters to fulfil these responsibilities.

8. The Department in charge of procurement

The Department in charge of procurement, as the formal interface with the contractor companies, will ensure:

- a) throughout the tendering process and resulting contract, the necessary provisions are in place to bind contractors to the requirements set by this policy are correctly included
- b) that the key requirements of ESA's health and safety policy are described within the contractual documentation

In the case of any doubt, it shall seek the advice of the person responsible for providing safety advice at the pertaining establishments.

9. Heads of ESA Departments and Divisions

Heads of Department and Division are responsible for identifying and controlling risks to the health and safety of the manpower resources who report to them in accordance with the principles described in this policy.

Support can be requested from the Department in charge of facilities management, at ESTEC, from the HSE unit or from the Department in charge of personnel matters (Medical support).

10. Technical Office

Technical officers are responsible for managing the risks to health and safety from the execution of contracts for which they have been or will be contractually designated as ESA's technical representative. They shall:

- a) ensure that the objectives and principles of this policy are implemented into their procurement requirements and during the execution of resulting contracts or changes to contracts.
- b) ensure that contracts for services and equipment to be delivered on-site take due account of the advice given by the Department in charge of procurement, and the health and safety advice provided by the Department in charge of facilities management or by the ESTEC HSE unit
- c) inform the site Health and Safety Officers (HSSO)⁵ or at ESTEC the HSE unit, of the health and safety aspects of any new or modified contracts (for example,

⁵ At sites other than ESTEC, the health and safety officer function is combined with responsibility for site security; hence, Health, Safety and Security Officer, or HSSO.

as identified in the risk assessment prepared by a contractor concerning the activity specified by the contract).

- d) set-up, in consultation with the Department in charge of facilities management (or at ESTEC, in consultation with the HSE Unit) appropriate monitoring arrangements for the contract at the earliest opportunity.
- e) ensure that contractor personnel are fully aware of the health and safety requirements of ESA and any arrangements specific to the site (including emergency arrangements).
- f) ensure, by liaising with the Department in charge of facilities management or at ESTEC with the HSE unit, that the contractor's activities will not conflict with other activities at the site.

11. The staff association

The staff representatives in charge of health and safety matters are SAC members, who:

- a) are selected at local level in each site according to the applicable procedures and who benefit from the guarantees and facilities normally granted to the Staff Association in line with ESA Staff Regulations, Rules, and Instructions.
- b) participate to local health and safety committees in accordance with Section 4.7 of this policy.
- c) may assist staff members concerned by an incident or involved in internal legal proceedings relating to health and safety in line with the ESA applicable provisions.
- d) may alert or inform Administration of any issue detected or reported by staff members and may be invited to produce reports or proposals on specific topics found appropriate.
- e) receive the appropriate training, as determined by the Human Resources Department, to ensure the fulfilment of their duties as described above, taking account of the duration of their mandate and the corresponding turnover with the SACs.

ANNEX 2

Provision of professional health and safety support to ESA sites and Departments

1. Liaison between Departments in charge of facilities management and personnel matters

The Heads of the Departments in charge of facilities management and personnel matters will liaise to ensure consistent health and safety management within the Agency. This cooperation provides the background against which professional health and safety support is provided in the Agency.

At site level, HSSEOs and HSE unit at ESTEC will liaise with the local Representative of the Department in charge of personnel matters to ensure that health and safety advice and assurance is complete and consistent.

At site level, HSSEOs and HSE unit at ESTEC provide the health and safety assurance, co-ordination, promotion, and advisory functions set out in this policy.

The ESTEC HSE unit contains safety, occupational health, and psychosocial risk expertise, and is headed by a professional health and safety advisor.

2. Contribution of HSSOs to corporate health and safety management.

2.1 Assistance to the Head of the Department in charge of facilities management

HSSEOs and at ESTEC, the Head of the HSE unit will assist the Head of the Department in charge of facilities management to:

- a) prepare the annual report of health and safety for the executive board supporting the Director General.
- b) prepare the agenda and information needed by this board meeting.
- c) agree a programme of health and safety auditing.
- d) review an Agency framework for monitoring health and safety risk management.
- e) review criteria for:
 - i) reporting safety incidents and occupational ill-health.
 - ii) reporting health and safety risks.
 - iii) site health and safety risk registers.

2.2 Preparation of annual health and safety report.

Each HSSO and at ESTEC, the Head of the HSE Unit will prepare an annual health and safety report to the Heads of Establishments and Centres.

Following endorsement by the Head of Establishment or Centre concerned this report shall be forwarded to the Head of Department in charge of facilities management.

The annual health and safety report will contain data as specified in the Agency framework for monitoring health and safety risk management. This data will:

- a) describe the incident and ill-health statistics of the site.
- b) indicate the state of conformance of the site.
- c) detail the management of risks that meet corporate reporting criteria.

2.3. Health and safety management activities at sites.

For the following health and safety management activities HSSEOs and the ESTEC HSE unit are to:

- a) assure by sampling, (e.g., physical inspections and audits) and incident investigations, that departments are adequately managing the health and safety risks arising from their activities. HSSEOs and H/HSE unit are to give special attention to risks that involve shared responsibilities across departments
- b) stop any activity that they believe creates inadequately managed health and safety risks to the people on site. The HSSEO and ESTEC H/HSE unit are accountable to the Head of Establishment for using this power
- c) monitor the state of conformity with the requirements of health and safety legislation in the host country
- d) assure the readiness and effectiveness of site-wide emergency plans
- e) assure the readiness of the site to conform with changes in regulations or corporate requirements
- f) maintain and review register of on-site health and safety risks.

ESTEC HSE unit is directly under the ESTEC Head of Establishment, while HSSEOs in respect of the above activities, report directly to their Head of Establishment. The

specifics of what is to be reported and how, are to be formally agreed and documented between them.

2.4 Support to the site health and safety committee

The HSSEO and the HSE unit at ESTEC, provides support to health and safety committees as directed by their Head of Establishment.

The HSSEO and the HSE unit at ESTEC will report to their health and safety committee on the status of general health and safety risks (including occupational health and psycho-social risks) on sites. This includes:

- a) the results of inspections and audits
- b) lessons to be learned from incidents
- c) emerging good practices
- d) changes to legislation and technical standards which relates to health and safety on site
- e) any other relevant data

2.5 Liaison with the Department in charge of legal affairs

The HSSEO and the HSE unit at ESTEC are to ensure that questions of a legal nature (other than disciplinary matters) and possible conflicts with the host nation's authorities responsible for enforcing health and safety legislation are referred to the Department in charge of legal affairs, and that the Head of Establishment and the Head of Department in charge of facilities management are informed.

2.6 Provision of technical advice and information

2.6.1 *General*

HSSEOs and the HSE unit at ESTEC provide advice, as requested, to:

- a) the Head of Establishment about liaison with local authorities
- b) Heads of Departments and Divisions and manpower resources about their roles and responsibilities for health and safety

- c) Heads of Departments, about health and safety issues arising from the activities of their department, including those which might affect people on mission or teleworking
- d) Technical Officers, about the health and safety requirements of contracts
- e) Technical Officers, about the management of health and safety risks arising from contract activities (including follow-up from HSSEO and the HSE unit at ESTEC monitoring activities)
- f) individuals who have been designated (by the Head of a Programme or Project) to act as a local expert on an aspect of risk health and safety management (e.g., laboratory safety).

2.6.2 In case of incidents

In the event of any incident, the HSSEO and the HSE unit at ESTEC are to advise the Head of Department where the incident occurred, about the timeliness, technical competence, and lines of inquiry to be followed by the investigation⁶. The investigations are conducted by the HSSEO and the HSE unit at ESTEC in collaboration with the relevant involved people.

In case of major incidents the ESA/ADMIN/IPOL-RISK(2020)¹ applies.

The HSSEO and the HSE unit at ESTEC is to give advice as soon as possible, review the advice if new information arises and follow up in writing.

In cases of occupational ill-health caused by the work environment, the HSSEO and the HSE unit at ESTEC will also liaise with the local head of HR.

2.6.3 Information about health and safety

HSSEOs and the HSE unit at ESTEC are to ensure that the manpower resources and visitors to site, receive information about health and safety arrangements at the site (including emergency procedures).

3. Support and competence of HSSOs

3.1 Role and management of the HSSO and the HSE unit at ESTEC function

- 3.1.1 Within ESA, the role of the HSSOs and the HSE unit at ESTEC is to provide independent advice about the control of risks to health and safety and to assure the effectiveness of the safety management system. (The safety management system includes all of the activities carried out by the Agency).

3.1.2 The Head of the Division in charge of facilities management manages the HSSEO function, is the line manager of the HSSEO, and provides the interface between the HSSEO and the Agency as an employer when the HSSEO is a member of Staff. The HSSEO reports directly to the Head of Establishment in case of health and safety issues. The Head of the HSE unit at ESTEC reports directly to the ESTEC Head of Establishment

3.1.3 Where the HSSO is a contractor; the Head of the Division in charge of facilities management will be the technical representative of the Agency to be designated under the contract through which the HSSO services are procured.

3.2 HSSOs and the HSE unit at ESTEC as designated workers

For the sole purpose of this policy and to preserve the independence of HSSEOs and the HSE unit at ESTEC, the latter shall benefit from the following guarantees:

- a) HSSEOs and the HSE unit at ESTEC may not be placed at any disadvantage because their activities relate to the protection and prevention of occupational risks
- b) HSSEOs and the HSE unit at ESTEC will be allowed adequate time to enable them to fulfil their obligations arising from this policy.

3.3 Annual Assessment of HSSOs and the HSE unit at ESTEC

3.3.1 The Head of the Division in charge of facilities management will conduct the HSSEO's annual assessment with input from the local HECO.

The ESTEC Head of Establishment will conduct the Head HSE Unit annual assessment.

The annual assessment will be performed with the Representative of the Department in charge of personnel matters to ensure that the spirit and intent of section 3.2 is upheld.

In addition to the usual personnel requirements, these appraisals will take account of the HSSEO's and the HSE unit at ESTEC:

- contribution to corporate health and safety management activities.
- contribution to on-site health and safety assurance and compliance activities.
- provision of technical advice to duty holders (named in the present) located at their duty station or specially assigned to them.

3.3.2 Where an HSSO role is performed under contract, the performance will be reviewed annually by the ESA technical officer for the contract, the Head of the

division in charge of facilities management, and a Staff member employed as an HSSO.

3.4 Required Qualifications

HSSEOs and the HSE unit at ESTEC shall obtain the qualifications appropriate to the Agency site(s) for which they are responsible; in particular,

- the certifications specified for health and safety professionals by the regulations in the local host nation
- certification if needed to perform monitoring of specific hazards on site⁷
- certification of continuing professional development needed to maintain their professional standing as a qualified health and safety practitioner (as defined by the host nation and by any specialisations required as part of the HSSEO's and the HSE unit at ESTEC employment).

4. Review of the function

HSSEOs and the HSE unit at ESTEC have a broad range of responsibilities, and therefore need sufficient resources to carry out their role.

Resources must be kept under constant review by the Agency.

As the function has a significant corporate dimension, the Head of the Department in charge of facilities management and the Head of the Department in charge of personnel matters will perform this review as part of their co-operation to implement ESA's health and safety policy.